

However, the California Supreme Court addressed this in a recent 2024 case, stating, “California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43.)

If the duty allegedly arose by virtue of the parties’ relationship and the defendant’s exclusive knowledge or access to certain facts, as . . . alleged here, the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) the defendant’s awareness of the materiality of those facts, (3) the inaccessibility of the facts to the plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant’s omission. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43-44.)

Plaintiff’s complaint does not contain specific allegations establishing all of the above elements. Numbers one, three, and four are satisfied by allegations at paragraphs 106 (“the defective transmission”), 107 (“None of this information was available to the public”), and 108 (“[b]efore the date of sale, on the date of sale, and on the date of each of the repair attempts. . .”), respectively. It does not appear that Plaintiff has pled specific allegations for elements (2) or (5), identified above. While Plaintiff pleads reliance on the alleged negligent misrepresentations in relation to their seventh cause of action, which are actual representations and not omissions, they do not plead reliance on any omission in relation to the eighth cause of action for fraud by concealment.

The Court concludes that Plaintiff has not properly pleaded their claim for fraudulent concealment.

Ruling

The Court sustains SOA’s demurrer to the eighth cause of action for fraudulent concealment. Plaintiff may file and serve an amended complaint within 30 days of entry of this order. (Code Civ. Proc., § 472b.)

16. 9:00 AM CASE NUMBER: C25-02015

CASE NAME: GOLRIZ HARRINGTON VS. SHAHNAZ NADERI

***HEARING ON MOTION IN RE: STRIKE CROSS-COMPLAINT OF SHAHNAZ NADERI PURSUANCE TO CA'S ANTI-SLAPP STATUTE**

FILED BY: HARRINGTON, GOLRIZ

TENTATIVE RULING:

Cross-Defendants Golriz and Sean Harrington’s special motion to strike the cross-complaint is **denied.**

The Harringtons agreed to lease a property from Naderi starting October 1, 2024. They allege that there were various habitability problems and after attempting to solve the problems (through

self-help and complaints to Naderi), they moved out on October 31, 2024. The Harringtons sued for breach of the warranty of habitability, breach of contract, breach of quiet enjoyment, nuisance, negligence and retaliation. Naderi filed a cross-complaint against the Harringtons, which is the subject of this motion.

Naderi's cross-complaint includes claims for (1) breach of contract, (2) novation and breach of contract and (3) negligence. The Harringtons filed this motion, seeking to strike the entire complaint under Code of Civil Procedure section 425.16.

"Resolution of an anti-SLAPP motion [or special motion to strike] involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. We have described this second step as a 'summary-judgment-like procedure.' [Citation.]" (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384-385.)

"[M]ixed claims, which are based on allegations of both protected and unprotected activity, are subject to the first step of the anti-SLAPP analysis because a plaintiff cannot shield 'particular allegations of protected activity, themselves sufficient to give rise to a claim for relief, from a motion to strike by intermingling them with unprotected acts.' [Citations.]" (*Golden Gate Land Holdings LLC v. Direct Action Everywhere* (2022) 81 Cal.App.5th 82, 92; see also, *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1010.) In a mixed cause of action, the Court "should analyze each claim for relief—each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action—to determine whether the acts are protected and, if so, whether the claim they give rise to has the requisite degree of merit to survive the motion." (*Bonni, supra*, 11 Cal.5th 995, 1010.)

Claims are not mixed where the allegations of protected activity merely provide context, without supporting a claim for recovery, and such incidental or extraneous allegations cannot be stricken under the anti-SLAPP statute. (*Golden Gate Land Holdings LLC, supra*, 81 Cal.App.5th at 92; *Baral, supra*, 1 Cal.5th at 394.)

Protected Activity

"At this first step, courts are to 'consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.' (*Park, supra*, 2 Cal.5th at p. 1063.) The defendant's burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity. (*Wilson, supra*, 7 Cal.5th at p. 884.)" (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.)

The Harringtons argue that this cross-complaint was filed in response to the Harringtons' complaint and therefore, it constitutes protected activity. "[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute. [Citation.] Moreover, that a cause of action arguably may have been

'triggered' by protected activity does not entail that it is one arising from such. [Citation.] In the anti-SLAPP context, the critical consideration is whether the cause of action is *based on* the defendant's protected free speech or petitioning activity." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 89.)

Naderi argues that her cross-complaint is a compulsory cross-complaint and therefore cannot constitute protected activity. "A cross-complaint may be subject to an anti-SLAPP motion based on the plaintiff's right to petition. [Citation.] However, such a cross-complaint must allege a cause of action arising from the plaintiff's act of filing the complaint itself. [Citation.] That is, a cross-complaint will ordinarily not be considered a SLAPP suit because a cross-complaint usually arises from the underlying dispute alleged in the complaint, and not out of the litigation process itself; a defendant's oppressive litigation tactics alone will not trigger a dismissal under the anti-SLAPP statute. [Citation.]" (*Joslin v. Third Laguna Hills Mutual* (2020) 49 Cal.App.5th 366, 371-372.)

When ruling on the first prong of a special motion to strike, the Court first identifies protected activity and second it looks to each cause of action to determine if that claim arises from the protected activity.

Here, the Harringtons argue that the cross-complaint is based upon protected activity under sections 425.16(e)(1)-(2) because the cross-complaint is based upon the Harringtons filing this case. Naderi alleges that the Harringtons "were negligent in the execution of their owned planned and incomplete work; their actions constituted an anticipatory breach of Lease; and they breached their novation agreement related to Lease termination by virtue of the condition in which they surrendered the Property *and their commencement of this litigation.*" (Cross-comp. ¶10 (emphasis added).) The three causes of action incorporate these allegations.

The Harringtons argue that the following allegations constitute protected activity: the Harringtons' "wrongful demands", "filing of this litigation" and their "failure to proceed with the tenancy". The demands alleged in the cross-complaint include various requests for repairs or changes to the rental unit. The Harringtons have not shown how wrongful demands or ending a tenancy early would constitute protected activity.

The Harringtons argue that Naderi retaliated against them, which is a violation of Civil code section 1942.5(c). Civil Code section 1942.5 prevents a landlord from retaliating against a tenant in certain situations, but the Harringtons have not shown how this section applies in the anti-SLAPP context.

As to the filing of this lawsuit, "It is well established that filing a lawsuit is an exercise of a party's constitutional right of petition. [Citations.]" (*Chavez v. Mendoza* (2001) 94 Cal.App.4th 1083, 1087.) Thus, the Harringtons argue that the entire cross-complaint is based upon this protected activity. But the analysis is not that simple. For each cause of action, the Court must look to "the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability." (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1063.)

In the first cause of action for breach of contract, Naderi alleges that the parties entered into

a lease contract and Naderi provided possession to the Harringtons. The Harringtons did not perform under the lease and Naderi was damaged. This claim does not arise from the Harringtons decision to file a lawsuit. This claim arose in October 2024 when the Harringtons vacated the property. The Harringtons' argument that they had a right to vacate the property because of habitability issues is a factual dispute to be determined later. It does not change the nature of this claim. (Cross-comp. ¶13.)

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

The Court finds that the breach of contract claim is not based on protected activity and that the allegation regarding the Harringtons filing a lawsuit is incidental to this claim. Therefore, the motion to strike is denied as to the first cause of action.

In the second cause of action for novation and breach of contract, Naderi alleges when the Harringtons told Naderi that they were going to breach the lease, Naderi offered to allow the lease termination. She alleges that the parties entered into a novation of the lease, but then the Harringtons abandoned the property in damaged condition with incomplete and negligently executed work. (Cross-comp. ¶15.) In paragraph 10, Naderi alleges that the Harringtons "breached their novation agreement related to Lease termination by virtue of the condition in which they surrendered the Property and their commencement of this litigation." (Cross-comp. ¶10.)

"A novation is a substitution, by agreement, of a new obligation for an existing one, with intent to extinguish the latter. (Civ. Code, §§ 1530, 1532.) A novation is subject to the general rules governing contracts (Civ. Code, § 1532) and requires an intent to discharge the old contract, a mutual assent, and a consideration. (1 Witkin, Summary of Cal. Law (1960) Contracts, § 315, pp. 340-341.)" (*Klepper v. Hoover* (1971) 21 Cal.App.3d 460, 463.)

Here, the novation claim is based upon two types of breaches: (1) leaving the property in a damaged condition and (2) filing this lawsuit. As to the first breach, that claim is not based upon protected activity. The second breach, however, is based upon protected activity – the filing of this lawsuit. The Court finds that the novation claim is a mixed cause of action, involving both protected and unprotected activity.

Therefore, the motion to strike cause of action two is denied as to the portion of the claim based upon leaving the property in a damaged condition. The Court must proceed to prong two, on the claim that the Harringtons breached the novation contract by filing this litigation. (See, e.g. *Bonni*, *supra*, 11 Cal.5th 995, 1010.)

In the third cause of action for negligence, Naderi alleges that the Harringtons performed work on the property pursuant to the lease and Naderi's approval. She also alleges that "they owed a duty of due care to undertake and complete all of such work in workmanlike fashion consistent with construction custom and practice applicable to single family houses in the Danville area." Finally, she

alleges that they performed the work negligently and she was damaged. (Cross-comp. ¶17.)

The elements for negligence are a legal duty to use due care, breach of duty and the breach caused harm. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Here, the negligence claim is based on the Harringtons doing work that was not up to acceptable standards. The Court finds that the negligence claim is not based on protected activity and that the allegation regarding the Harringtons filing a lawsuit is incidental to this claim. Therefore, the motion to strike is denied as to the third cause of action

Probability of prevailing

On prong two, the Court must decide whether Naderi can show a probability of prevailing on the claim that the Harringtons breached the novation agreement with “commencement of this litigation.”

At this step, “the burden shifts to the [cross-complainant] to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The court, without resolving evidentiary conflicts, must determine whether the plaintiff’s showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. If not, the claim is stricken.” (*Baral, supra*, 1 Cal.5th at 396.)

In her declaration, Naderi states that “In mid-October, the Harringtons surprised me and sent a lengthy list of tasks that they demanded I undertake. They proposed a unilateral Lease termination if I refused to accept their demands. I responded by stating that I would agree to a Lease termination but no refund of any rent paid for the Lease term.... I gave the Harringtons the election to terminate the Lease with no refund related to rent during its brief term or to perform their Lease obligations and conform to its conditions. The Harringtons accepted the Lease termination agreement and we consequently agreed to ‘walk away’.” (Naderi dec. p.3:1-9.)

As discussed above, a novation is subject to the general rules governing contracts, which “requires an intent to discharge the old contract, a mutual assent, and a consideration.” (*Klepper v. Hoover* (1971) 21 Cal.App.3d 460, 463.) Naderi’s declaration is sufficient to show novation of the lease agreement. Naderi states that the parties agreed to “walk away” from the lease and then later the Harringtons sued Naderi. The Harringtons’ complaint shows that they are suing her for breach of the lease and related claims. These facts are sufficient to show Naderi’s probability of prevailing on a claim for breach of contract based upon novation of the lease agreement.

The Harringtons argue that Naderi did not allege termination of the lease agreement in her cross-complaint and that in any event there is no evidence of such an agreement. The Harringtons point to Gloriz Harrington’s declaration where she states that “No written or oral termination agreement was ever entered into by Sean Harrington or me.” (G. Harrington dec. ¶19.)

The Harringtons also point to *Alexander v. Angel* (1951) 37 Cal.2d 856, 860 to show that the novation claim fails where it is unsupported by “any written agreement, mutual assent, or consideration.” *Alexander* does not hold that a novation must be written. A novation is subject to the

general rules governing contracts (Civ. Code, § 1532), which means that in general “an oral novation may extinguish a written agreement.” (*Bush v. Vernon* (1955) 135 Cal.App.2d 33, 37 [286 P.2d 903].)

The Harringtons’ arguments fail. The cross-complaint alleges that the parties agreed to terminate the lease. (Cross-comp. ¶¶9, 10, 15.) The parties have each provided evidence, through their declarations, regarding whether they agreed to terminate the lease early. On prong two of a special motion to strike, the Court accepts the opposing party’s evidence as true. Thus, while there is a dispute of fact here, the Court accepts Naderi’s evidence for the purpose of showing a probability of prevailing on the merits.

Therefore, the Court finds that Naderi has shown a probability of prevailing on her novation – breach of contract claim based upon the Harringtons’ filing this lawsuit and the motion to strike those allegations is denied.

17. 9:00 AM CASE NUMBER: C25-02272
CASE NAME: GEORGE PAVANA VS. DAS POLLAYIL
***HEARING ON MOTION IN RE: FOR OSC RE SALE OF REAL PROPERTY**
FILED BY:
TENTATIVE RULING:

Continued to April 15, 2026. (See January 20, 2026 minute order.)

18. 9:00 AM CASE NUMBER: C25-02843
CASE NAME: JULIANO SILVA VS. JAMES RIVER INSURANCE
HEARING ON PETITION IN RE: PETITION TO ASSIGN CASE NUMBER AND TO SET REASONABLE DEPOSITION FEE
FILED BY: SILVA, JULIANO
TENTATIVE RULING:

This Petition to assign a case number and set a reasonable deposition fee, and the Motion currently scheduled for February 4, 2026 at 9:00 a.m. to Set Reasonable Deposition Fee for Dr. Robert Rovner are **continued**, *sua sponte*, to March 26, 2026 at 9:00 a.m. in Dept. 10 before Hon. Juila Campins. The hearings calendared for January 28, 2026 and February 4, 2026 at 9:00 a.m. are vacated. No appearance is required.

19. 9:00 AM CASE NUMBER: MSC20-02307
CASE NAME: MCNEAL VS LIBERTY MUTUAL GROUP
HEARING ON ORDER TO SHOW CAUSE IN RE:
FILED BY:
TENTATIVE RULING:

The hearing on this matter is **continued** pursuant to a request and Declaration submitted by Plaintiff Linton McNeal to March 18, 2026 at 9:00 a.m. The clerk of the court shall provide notice of continued hearing to Plaintiff Linton McNeal and to Defendant Kurita Jamison Pratt. No appearances are required on January 28, 2026.